

GINSBURG, J., dissenting

The only salient difference here: the fortuity that the bullet happened to strike Hernández on the Mexican side of the embankment. But Hernández’s location at the precise moment the bullet landed should not matter one whit. After all, “[t]he purpose of *Bivens* is to deter *the officer*.” *Abbasi*, 582 U. S., at 140 (internal quotation marks omitted); *supra*, at 123–124. And primary conduct constrained by the Fourth Amendment is an *officer’s* unjustified resort to excessive force. See *Garner*, 471 U. S., at 20–22. Mesa’s allegedly unwarranted deployment of deadly force occurred on United States soil. It scarcely makes sense for a remedy trained on deterring rogue officer conduct to turn upon a happenstance subsequent to the conduct—a bullet landing in one half of a culvert, not the other.

Nor would it make sense to deem some culvert locations “new settings” for *Bivens* purposes, but others (those inside the United States), familiar territory. As recounted in JUSTICE BREYER’s dissent earlier in this litigation, the culvert “does not itself contain any physical features of a border”; it consists of wide swaths of “concrete-lined empty space” with fencing on each side. *Hernández*, 582 U. S., at 557. See also *id.*, at 560 (noting “the near irrelevance of [the] midculvert line . . . for most border-related purposes”). It is not asserted that Mesa “knew on which side of the boundary line [his] bullet would land.” *Id.*, at 557.

Finally, although the bullet happened to land on the Mexican side of the culvert, the United States, as in *Bivens*, unquestionably has jurisdiction to prescribe law governing a Border Patrol agent’s conduct. That prescriptive jurisdiction reaches “conduct that . . . takes place within [United States] territory.” Restatement (Third) of Foreign Relations Law of the United States § 402 (1986). The place of a rogue officer’s conduct “has peculiar significance” to choice of the applicable law where, as here, “the primary purpose of the tort rule involved is to deter or punish misconduct.”